

Plaintiff's fourth cause of action as alleged is vastly similar to that of seeking contempt relief under 11 U.S.C. § 524. The exclusive remedy for such is civil contempt enforced through the bankruptcy court that issued the discharge order. As Plaintiff has alleged in their opposition that the defect may be cured through amendment and has provided details on how they might cure the defect, leave to amend is granted.

Plaintiff is to file an amended complaint within ten (10) days of this court's order.

26CV-01425

Yumeng Chen vs Sungrow USA Corporation, et al.

Motion to Strike Portions of Plaintiff's First Amended Complaint

Defendant's motion to strike the prayer for punitive damages in the first amended complaint is GRANTED WITH LEAVE TO AMEND.

Plaintiff does not plead sufficient facts under Civil Code section 3294 to support a prayer for punitive damages. Accordingly, the court strikes Prayer No. 3 (FAC, 22:21, No. 3) from the first amended complaint. As the defect may be cured by alleging additional facts, leave to amend is granted.

Plaintiff may file their amended complaint to allege additional facts to support punitive damages at any time more than six (6) months before trial.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

26CV-03229

Caliber Contracting Services, Inc. vs County of Merced, et al.

Order to Show Cause re: Preliminary Injunction

Appearance required. Hearing will commence upon completion of the remaining matters on the 8:15 a.m. calendar.
